SPECIAL PROVISIONS

CANONICAL PART XXI SCOPE → ARTICLE 370 BEFORE 2019 → THE 2019 CONSTITUTIONAL-ORDER AND → IN RE ARTICLE 370 → CURRENT JAMMU AND KASHMIR → ARTICLES 371 TO 371D

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00 →

STAGE 00

CANONICAL PART XXI SCOPE AND THE BOUNDARY WITH OTHER TOPICS

CANONICAL PART XXI SCOPE AND THE BOUNDARY WITH OTHER · PART XXI · TEMPORARY, TRANSITIONAL AND SPECIAL PROVISIONS · ARTICLES 369-392 INCLUDE TIME-BOUND TRANSITIONAL RULES, CONTINUANCE/ADAPTATION DEVICES AND · THIS TOPIC OWNS · ARTICLE 370 EVOLUTION/CURRENT STATUS + ARTICLES 371-371J + ASYMMETRY · DISTINCT OWNERS · PART XVIII EMERGENCIES

PART XXI: TEMPORARY, TRANSITIONAL AND SPECIAL PROVISIONS

Articles 369-392 include time-bound transitional rules, continuance/adaptation devices and State-specific constitutional asymmetry. → THIS TOPIC OWNS → Article 370 evolution/current status + Articles 371-371J + asymmetry mechanisms.

CONSTITUTIONAL BASIS / ARTICLE

- PART XXI: TEMPORARY, TRANSITIONAL AND SPECIAL PROVISIONS
- Articles 369-392 include time-bound transitional rules, continuance/adaptation devices and State-specific constitutional asymmetry.
- THIS TOPIC OWNS

POWER / PROCEDURE

- Article 370 evolution/current status + Articles 371-371J + asymmetry mechanisms.
- DISTINCT OWNERS
- Part XVIII emergencies

CHECK / LIMIT

- reservation/class provisions
- Part X and Fifth/Sixth Schedules ordinary Union-State flexibility
- Union Territory administration.

FEDERAL / RIGHTS IMPACT

- CORE IDEA constitutional equality permits reasoned differentiation
- special treatment remains inside one Constitution and does not create separate sovereignty.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Part XXI uses differentiated arrangements to accommodate regional histories and vulnerabilities within the Constitution, showing that equality need not require identical institutions.

01 →

STAGE 01

ARTICLE 370 BEFORE 2019: ACCESSION, ORDERS AND CONSTITUTIONAL APPLICATION

ARTICLE 370 BEFORE 2019 · ACCESSION, ORDERS AND CONSTITUTIONAL APPLICATION · PRE-2019 OPERATING CHAIN · INSTRUMENT OF ACCESSION FIELDS · ARTICLE 370(1) CONSULTATION/CONCURRENCE · PRESIDENTIAL ORDERS · WIDER CONSTITUTION AND UNION-LAW APPLICATION TO J&K. · ARTICLE 35A

PRE-2019 OPERATING CHAIN → Instrument of Accession fields → Article 370(1) consultation/concurrence → Presidential Orders → wider Constitution and Union-law application to J&K. → ARTICLE 35A → 1954 Constitution Application Order → permanent-resident definition and specified protections.

CONSTITUTIONAL BASIS / ARTICLE

- PRE-2019 OPERATING CHAIN
- Instrument of Accession fields → Article 370(1) consultation/concurrence
- Presidential Orders → wider Constitution and Union-law application to J&K.

POWER / PROCEDURE

- ARTICLE 35A
- 1954 Constitution Application Order → permanent-resident definition and specified protections.
- CONSTITUENT ASSEMBLY ISSUE

CHECK / LIMIT

- Article 370(3) proviso referred to J&K Constituent Assembly; it dissolved in 1957.
- Sampat Prakash (1968) → Article 370 and Presidential-Order practice continued after 1957.
- LIMIT autonomy was constitutionally mediated; it did not amount to external sovereignty.

FEDERAL / RIGHTS IMPACT

- ARTICLE 35A

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Before 2019, Article 370 mediated the Constitution's application to Jammu and Kashmir through consultation and concurrence, but did not create sovereignty outside India.

02 →

STAGE 02

THE 2019 CONSTITUTIONAL-ORDER AND REORGANISATION SEQUENCE

THE 2019 CONSTITUTIONAL-ORDER AND REORGANISATION SEQUENCE · 5 AUGUST 2019 · C.O. 272 UNDER ARTICLE 370(1) · CONSTITUTION APPLIED COMPREHENSIVELY · INTERPRETIVE CHANGE USED THE STATE-LEGISLATURE ROUTE WHILE PRESIDENT'S RULE · PARLIAMENTARY RESOLUTION RECOMMENDED ARTICLE 370(3) DECLARATION. · 6 AUGUST 2019 · C.O. 273

5 AUGUST 2019 → C.O. 272 under Article 370(1) → Constitution applied comprehensively → interpretive change used the State-legislature route while President's Rule operated. → PARLIAMENTARY RESOLUTION recommended Article 370(3) declaration. → 6 AUGUST 2019

CONSTITUTIONAL BASIS / ARTICLE

- 5 AUGUST 2019
- C.O. 272 under Article 370(1) → Constitution applied comprehensively
- interpretive change used the State-legislature route while President's Rule operated.

POWER / PROCEDURE

- PARLIAMENTARY RESOLUTION recommended Article 370(3) declaration.
- 6 AUGUST 2019
- C.O. 273 → Article 370 provisions ceased to operate except the modified declaration.

CHECK / LIMIT

- J&K REORGANISATION ACT, 2019 former State → UT of Jammu and Kashmir with legislature
- UT of Ladakh without legislature, effective 31 October 2019.
- Presidential Orders, parliamentary resolution and reorganisation statute are distinct legal acts.

FEDERAL / RIGHTS IMPACT

- PARLIAMENTARY RESOLUTION recommended Article 370(3) declaration.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Asymmetric federalism is legitimate only when differentiated treatment serves a constitutional purpose and remains proportionate and accountable.

03 →

STAGE 01

IN RE ARTICLE 370 (2023): HOLDINGS AND ISSUES LEFT OPEN

IN RE ARTICLE 370 (2023) · HOLDINGS AND ISSUES LEFT OPEN · IN RE · ARTICLE 370 OF THE CONSTITUTION (2023) · ARTICLE 370 WAS TEMPORARY; J&K HAD NO INTERNAL SOVEREIGNTY · ARTICLE 370(3) POWER SURVIVED DISSOLUTION OF THE J&K CONSTITUENT · C.O. 273 DECLARATION WAS UPHELD · C.O. 272'S ARTICLE 367 ROUTE WAS INVALID, BUT THE

CONSTITUTIONAL BASIS / ARTICLE

- In Re: Article 370 of the Constitution (2023)
- Article 370 was temporary; J&K had no internal sovereignty after accession
- Article 370(3) power survived dissolution of the J&K Constituent Assembly

POWER / PROCEDURE

- C.O. 273 declaration was upheld
- C.O. 272's Article 367 route was invalid, but the final outcome survived independently
- J&K Constitution became inoperative after full application of India's Constitution.

CHECK / LIMIT

- OPEN / QUALIFIED
- Court recorded restoration-of-Statehood assurance and set no judicial deadline.
- It did not finally decide the State-to-UT conversion issue after the Union concession.

FEDERAL / RIGHTS IMPACT

- VERDICT the Article 370 abrogation question is judicially settled; Statehood timing remains political/legal.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: In re Article 370 upheld the 2019 constitutional result and rejected continuing internal sovereignty, but did not finally validate every conceivable conversion of a State into Union Territories.

04 →

STAGE 04

CURRENT JAMMU AND KASHMIR AND LADAKH POSITION

CURRENT JAMMU AND KASHMIR AND LADAKH POSITION · JAMMU AND KASHMIR · UNION TERRITORY WITH LEGISLATURE · ASSEMBLY ELECTIONS HELD SEP-OCT 2024 · STATEHOOD NOT RESTORED AS OF 24 AUGUST 2026. · UNION TERRITORY WITHOUT LEGISLATURE. · DEMANDS INCLUDE STATEHOOD, SIXTH SCHEDULE PROTECTION AND ARTICLE 371-TYPE · LEGAL STATUS CONTROL DEMANDS, COMMITTEE TALKS AND POLITICAL ASSURANCES

JAMMU AND KASHMIR

Union Territory with legislature → Assembly elections held Sep-Oct 2024 → Statehood not restored as of 24 August 2026.

CONSTITUTIONAL BASIS / ARTICLE

- JAMMU AND KASHMIR
- Union Territory with legislature
- Assembly elections held Sep-Oct 2024

POWER / PROCEDURE

- Statehood not restored as of 24 August 2026.
- Union Territory without legislature.
- Demands include Statehood, Sixth Schedule protection and Article 371-type safeguards.

CHECK / LIMIT

- LEGAL STATUS CONTROL demands, committee talks and political assurances are not enacted constitutional change.
- J&K Statehood restoration → reorganisation/federal-status question
- Ladakh Sixth Schedule → Article 244 + Sixth Schedule autonomy question

FEDERAL / RIGHTS IMPACT

- Article 371-type protection → Part XXI amendment question.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Ladakh remains a Union Territory without a legislature, while Statehood and Sixth Schedule demands remain political proposals rather than enacted constitutional status.

05 →

STAGE 05

ARTICLES 371 TO 371D: DEVELOPMENT AND REGIONAL-EQUITY MECHANISMS

ARTICLES 371 TO 371D · DEVELOPMENT AND REGIONAL-EQUITY MECHANISMS · ARTICLE 371 · GOVERNOR'S SPECIAL RESPONSIBILITY FOR REGIONAL DEVELOPMENT BOARDS, EQUITABLE FUNDS · ARTICLE 371A · NAGALAND SPECIFIED RELIGIOUS/SOCIAL PRACTICES, CUSTOMARY LAW, CUSTOMARY JUSTICE AND · ARTICLE 371B · ASSEMBLY COMMITTEE FOR TRIBAL AREAS.

ARTICLE 371

Maharashtra/Gujarat → Governor's special responsibility for regional development boards, equitable funds and opportunities. → ARTICLE 371A: NAGALAND specified religious/social practices, customary law, customary justice and land/resources shielded from parliamentary → Assembly resolves otherwise.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 371
- Maharashtra/Gujarat → Governor's special responsibility for regional development boards, equitable funds and opportunities.
- ARTICLE 371A: NAGALAND specified religious/social practices, customary law, customary justice and land/resources shielded from parliamentary law unless State

POWER / PROCEDURE

- Assembly resolves otherwise.
- ARTICLE 371B: ASSAM
- Assembly committee for tribal areas.

CHECK / LIMIT

- ARTICLE 371C: MANIPUR
- Hill Areas Committee + Governor reporting/special responsibility framework.
- ARTICLE 371D: ANDHRA PRADESH/TELANGANA equitable local opportunities in public employment/education; presidential-order mechanism.

FEDERAL / RIGHTS IMPACT

- ARTICLE 371E merely enables a Central University in Andhra Pradesh.

MECHANISM / VERDICT — ARTICLE 371D: ANDHRA PRADESH/TELANGANA equitable local opportunities in public employment/education; presidential-order mechanism.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 371D authorises regional arrangements for equitable public employment and education, using constitutional asymmetry to address intra-State imbalance.

06 →

STAGE 06

ARTICLES 371F TO 371J: IDENTITY, LAW-AND-ORDER AND LOCAL OPPORTUNITY

ARTICLES 371F TO 371J · IDENTITY, LAW-AND-ORDER AND LOCAL OPPORTUNITY · ARTICLE 371F · SIKKIM INTEGRATION-SPECIFIC ASSEMBLY, REPRESENTATION AND CONTINUITY PROTECTIONS. · ARTICLE 371G · MIZORAM SPECIFIED RELIGIOUS/SOCIAL PRACTICES, CUSTOMARY LAW/JUSTICE AND LAND PROTECTION · ARTICLE 371H · ARUNACHAL PRADESH

ARTICLE 371F: SIKKIM integration-specific Assembly, representation and continuity protections.

ARTICLE 371G: MIZORAM specified religious/social practices, customary law/justice and land protection unless State Assembly resolves → distinct from Nagaland's resource wording. → ARTICLE 371H: ARUNACHAL PRADESH

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 371F: SIKKIM integration-specific Assembly, representation and continuity protections.
- ARTICLE 371G: MIZORAM specified religious/social practices, customary law/justice and land protection unless State Assembly resolves otherwise

POWER / PROCEDURE

- distinct from Nagaland's resource wording.
- ARTICLE 371H: ARUNACHAL PRADESH

CHECK / LIMIT

- Governor's special responsibility for law and order, exercised after ministerial consultation.
- ARTICLE 371I: GOA minimum Assembly size safeguard.

FEDERAL / RIGHTS IMPACT

- ARTICLE 371J: KALYANA KARNATAKA development board, equitable funds and local reservations/opportunity mechanisms.
- EXAM RULE match State → Article → protected subject → decision-maker → consent/resolution requirement.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 371H gives Arunachal Pradesh's Governor limited individual judgment over law and order, but not personal control over the State's entire policy domain.

07 →

STAGE 07

MECHANISM COMPARISON: ORDERS, AMENDMENTS AND TRIBAL SCHEDULES

MECHANISM COMPARISON · ORDERS, AMENDMENTS AND TRIBAL SCHEDULES · ARTICLE 370 HISTORIC ROUTE · PRESIDENTIAL ORDERS UNDER ITS OWN TEXT · NOW INOPERATIVE AFTER 2019/2023 CONTROL. · ARTICLES 371-371J CONSTITUTIONAL TEXT CREATED OR CHANGED THROUGH CONSTITUTIONAL-AMENDMENT · SOME CLAUSES AUTHORISE PRESIDENTIAL ORDERS OR GOVERNOR RESPONSIBILITIES FOR · FIFTH SCHEDULE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 370 HISTORIC ROUTE	some clauses authorise Presidential Orders or Governor responsibilities for implementation.	SIXTH SCHEDULE autonomous district/regional councils in Assam, Meghalaya, Tripura and Mizoram.	!= Fifth Schedule administration != Article 370's former application mechanism.
Presidential Orders under its own text → now inoperative after 2019/2023 control.	FIFTH SCHEDULE	DO NOT MERGE	
ARTICLES 371-371J constitutional text created or changed through constitutional-amendment history	Scheduled Areas + Governor/Tribes Advisory Council + presidential declaration architecture.	Article 371A/371G consent shields != Sixth Schedule councils	

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 370 HISTORIC ROUTE
- Presidential Orders under its own text → now inoperative after 2019/2023 control.
- ARTICLES 371-371J constitutional text created or changed through constitutional-amendment history

POWER / PROCEDURE

- some clauses authorise Presidential Orders or Governor responsibilities for implementation.
- FIFTH SCHEDULE
- Scheduled Areas + Governor/Tribes Advisory Council + presidential declaration architecture.

CHECK / LIMIT

- SIXTH SCHEDULE autonomous district/regional councils in Assam, Meghalaya, Tripura and Mizoram.
- DO NOT MERGE
- Article 371A/371G consent shields != Sixth Schedule councils

FEDERAL / RIGHTS IMPACT

- != Fifth Schedule administration != Article 370's former application mechanism.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Fifth Schedule emphasises protected administration and advisory mechanisms, while the Sixth Schedule gives specified north-eastern tribal areas a stronger self-government framework.

08 →

STAGE 08

FEDERALISM, EQUALITY, CURRENT TRAPS AND QUALIFIED SYNTHESIS

FEDERALISM, EQUALITY, CURRENT TRAPS AND QUALIFIED SYNTHESIS · WHY ASYMMETRY HISTORICAL COMPACT + CULTURAL IDENTITY + TRIBAL · TAILORED GUARANTEE · INTEGRATION WITH PROTECTION. · RISKS INSIDER-OUTSIDER EXCLUSION · WEAK IMPLEMENTATION · GOVERNOR CONTROVERSY UNEQUAL OPPORTUNITY · PERMANENT GRIEVANCE POLITICS.

WHY ASYMMETRY historical compact + cultural identity + tribal land/custom + regional imbalance → tailored guarantee → integration with protection. → RISKS insider-outsider exclusion → weak implementation → Governor controversy unequal opportunity

CONSTITUTIONAL BASIS / ARTICLE

- WHY ASYMMETRY historical compact + cultural identity + tribal land/custom + regional imbalance
- tailored guarantee → integration with protection.
- RISKS insider-outsider exclusion
- weak implementation
- Governor controversy unequal opportunity

POWER / PROCEDURE

- permanent grievance politics.
- PRELIMS FIREWALL
- Article 370 printed but inoperative
- Articles 371-371J still operative
- 371E enables a university

CHECK / LIMIT

- 371I concerns Goa
- 371H law and order
- Fifth/Sixth Schedules are not Part XXI
- Ladakh demands are not law.
- MAINS SPINE define asymmetric federalism → classify mechanism → exact Article/State

FEDERAL / RIGHTS IMPACT

- benefit → equality/federal counterpoint → implementation reform
- unity through constitutionally bounded and reviewable difference.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Special provisions can be defended as substantive equality; unequal conditions may need differentiated treatment.

E →

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · 36. THE ARTICLE 370 JUDGMENT AND CONSTITUTIONAL METHOD · 37. PRESIDENT'S RULE AND FEDERAL CONSENT · 38. DIFFERENTIATED CITIZENSHIP · 39. ANSWER-WRITING EVIDENCE DISCIPLINE · [ANALYSIS] THE JUDGMENT DISTINGUISHED THE POLITICAL WISDOM OF ABROGATION · [ANALYSIS] BY USING ARTICLE 370'S TEMPORARY CHARACTER AND CONTINUING · 367 MODIFICATION INDISPENSABLE.

OPTIONAL DOCTRINE / CASE

- 36. The Article 370 judgment and constitutional method
- 37. President's Rule and federal consent
- 38. Differentiated citizenship
- 39. Answer-writing evidence discipline

ADVANCED LIMIT

- [ANALYSIS] The judgment distinguished the political wisdom of abrogation from constitutional authority.
- [ANALYSIS] By using Article 370's temporary character and continuing presidential power, the Court avoided making the disputed Article
- 367 modification indispensable.
- [LIMIT] An answer should not compress multiple opinions into a slogan; use only common controlling propositions unless a separate opinion is relevant.

COMPARATIVE NUANCE

- [ANALYSIS] Critics argue that using President's Rule for permanent constitutional restructuring weakens federal consent.
- [ANALYSIS] The integration response relies on constitutional text, temporary Article 370 and Parliament's substitute authority during President's Rule.
- [LIMIT] Statehood conversion remains the strongest unresolved dimension; do not pretend the 2023 judgment supplied a universal rule.
- [ANALYSIS] Special land, employment and representation rules differentiate entitlements by residence, community or region.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels